

Court No. - 32

Case :- WRIT - C No. - 39422 of 2019

Petitioner :- Shri Nivas

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Anurag Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Neeraj Tiwari,J.

This writ petition has been filed, inter alia, for the following reliefs:

"a. to issue a writ, order or direction in the nature of Certiorari quashing the impugned final assessment dated 27.07.2019 issued by respondent no. 2 against the petitioner;

b. to issue a writ, order or direction in the nature of mandamus directing the respondent No. 2 to give the opportunity to the petitioner to submit his objection against the impugned final assessment and decide the same;"

Heard the learned counsel for the petitioner and Mr. Baleshwar Chaturvedi, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that due to unusual circumstances, he could not file his objection within time and the respondents are now taking coercive action against the petitioner without giving any further opportunity of hearing, and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 17.12.2019 at 11.00 A.M. before the Respondent No. 2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No. 2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned recovery citation shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 3.12.2019

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